SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
----------x
DR. PETER DASZAK, Ph.D.,

as Plaintiff,

v.

New York County
Index No.
164611/2025

ECOHEALTH ALLIANCE Inc., STEVEN SHAPIRO, individually and as Chairman of the Board of Directors of EcoHealth Alliance, Inc., and Juliet Agranoff,

as defendants.

----------x

AFFIDAVIT OF DR. PETER DASZAK, PH.D.

STATE OF NEW YORK)
)
COUNTY OF NEW YORK)

ss:

Dr. Peter Daszak, being duly sworn, deposes and says:

1. I am the plaintiff in the above-captioned action. I make this affidavit on personal knowledge and for the purpose of placing before the Court ceratin documents relevant to defendants' motion to dismiss.

2. For 24 years, and until January 6, 2025, I served as President and Chief Executive Officer of the defendant EcoHealth Alliance, Inc ("EHA"). (Verified Complaint, Dkt. No. 1, ¶1.) I was also a member of EHA's Board of Directors until June 2025. In that capacity, I supervised Joe Riccardi, who was EHA's Chief

Financial Officer. In the ordinary Course of EHA's activities, the CFO prepared financial statements which I presented to the Board of Directors.

3. Annexed hereto are the following:

A. EHA Finance Reports 22 August 2024.xlsx" This was a routine spreadsheet prepared by the CFO Joe Riccardi then shared with and approved by the Board, updated regularly as conditions changed. On the first tab "Severance" you can see me listed along with all other staff, with the expectation of paying out $368K severance (my prior base, without the bonuses I regularly received.) The total severance was then added in the cash flow. A true copy of that document is annexed hereto as Exhibit 1.

B. "Running Cash Flow-SJS V2.xlsx" This was from Dec. 10 2024. The "SJS" in the title refers to Stephen J. Shapiro. During the summer he started working directly on these financial reports, taking the versions from our CFO and editing and re-calculating them. In this spreadsheet, prepared by him, on the second tab "payables" he includes a total severance expectation in the unlikely event that the organization has to close down. The total $1,060,000 is the total severance including mine (from the first spreadsheet above), minus some staff who'd already been laid off between August and December. Exhibit 2.

4. These financial statements recognized and admitted that pursuant to EHA's policies and procedures, I was due a severance payment of at least $368,000.00

5. Annexed hereto is a true copy of the EHA Employee Handbook, which was prepared in the ordinary course of business. Exhibit 3.

Dr. Peter Daszak, Ph.D.

Sworn to before me
this 15th day of May 2026

YVES Y LEVY
Notary Public, State of New York
No. 01LE6444193
Qualified in Westchester County
Commission Expires November 21, 2026

Notary Public

Affidavit Exhibit 1

ECOHEALTH ALLIANCE
CASH FLOW ANALYSIS

	Sept 2024 Actual	31-Oct-24	Oct Actual	30-Nov-24	Nov Actual	31-Dec-24	Dec Actual	31-Jan-25	28-Feb-25	31-Mar-25	30-Apr-25	31-May-25
Updated 12/10/24-	**Opening Bal**											
Inflows												
Donations (Individuals, Foundations, Corporations-1	$ 4,654	$ 100,000	$ 55,029	*$ 25,000*	*$ 33,515*	*$ 25,000*	*$ 43,517*	*$ 25,000*	*$ 25,000*	*$ 25,000*	*$ 25,000*	*$ 25,000*
*Fundraising Campaign - **2***				*$ 20,000*		*$ 20,000*		*$ 20,000*	*$ 20,000*	*$ 20,000*	*$ 20,000*	*$ 20,000*
Board Give			$ 45,000						*$ 17,000*	*$ 17,000*	*$ 17,000*	*$ 17,000*
Bequests										$ 637,500		
IRS ERC				$ 312,000	$ 352,633							
Foundation Awards/Projects -3 (aligns with Grant Status chart)									*$ 100,000*	*$ 100,000*	*$ 100,000*	*$ 100,000*
USAID CW-Liberia	$ 329,730	$ 400,000		$ 600,000	$ 812,523	$ 450,000		-	-	-		
DTRA CLOSE OUT- Closeout Submission Completed as of week of 11/8						$ 600,000				-		
NIH Reimbursement- **8**		$ 250,000	$ 291,500	$ 194,412	$ 194,412	$ 650,000		$ 650,000				
In Progress Grants- **4**		$ 30,000						$ 350,000	$ 35,000			
Grant Reimbursement -**5**	$ 353,005	$ 240,000	$ 178,345		$ 62,956	$ 50,000						
Reimbursed Legal Fees - **6**								$ 85,000				
Miscellaneous - **7**	$ 24,946		$ 35,384		$ 1,266		$ 35,000					
Total Inflows	**$ 712,335**	**$ 1,020,000**	**$ 605,258**	**$ 1,151,412**	**$ 1,457,305**	**$ 1,795,000**	**$ 78,517**	**$ 1,130,000**	**$ 197,000**	**$ 799,500**	**$ 162,000**	**$ 162,000**
	Sept 2024 Actual	**31-Oct-24**	**Oct Actual**	**30-Nov-24**	**Nov Actual**	**31-Dec-24**		**31-Jan-25**	**28-Feb-25**	**31-Mar-25**	**30-Apr-25**	**31-May-25**
Outflows												
Payroll/FICA/MC	$ 421,436	$ 200,000	$ 294,632	$ 200,000	$ 213,777	$ 200,000	$ 1,476	$ 190,000	$ 190,000	$ 190,000	$ 190,000	$ 190,000
Health Care - Oxford	$ 51,489	$ 25,000	$ 47,418	$ 25,000	$ 32,167	$ 25,000	$ 38,489	$ 25,000	$ 25,000	$ 25,000	$ 25,000	$ 25,000
Metlife/Life Insurance, Dental, Disability	$ 7,120	$ 7,500	$ 4,471	$ 7,500	$ 10,517	$ 7,500	$ 11,634	$ 7,500	$ 7,500	$ 7,508	$ 7,508	$ 7,508
Pension Plan - TIAA CREF	$ 23,031	$ 22,500	$ 61,529	$ 22,500	$ 33,016	$ 22,500		$ 22,500	$ 22,500	$ 22,500	$ 22,500	$ 22,500
Rent 520 8th Avenue and Utilities-9	$ 47,141	$ 47,500	$ 47,129	$ 47,500	$ 46,549	$ 20,000		$ 20,000	$ 20,000	$ 20,000	$ 20,000	$ 20,000
Legal Fees (TKD, Steptoe)	$ 89,935	$ -		$ 36,922	$ 36,922	$ 165,000	$ 149,485	$ 165,000	$ 165,000	$ 50,000	$ 50,000	$ 50,000
Arnold & Porter/ Getzler Henrich					$ 8,100	$ 90,000		$ 110,000	$ 60,000	$ 25,000		
Credit Card Payment	$ 69,735	$ 20,000	$ 28,838	$ 20,000	$ 75,322	$ 20,000	$ 13,653	$ 10,000	$ 10,000	$ 10,000	$ 10,000	$ 10,000
Vendor/Sub Recipient	$ 230,883	$ 424,401	$ 424,401	$ 192,275	$ 192,275	$ 550,000	$ 122,082	$ 300,000	$ 300,000	-	-	-
DTRA Repayment						$ -		$ 550,000		$ 550,000		$ 250,000
Total Outflows	**$ 940,769**	**$ 746,901**	**$ 908,417**	**$ 551,697**	**$ 648,645**	**$ 1,100,000**	**$ 336,820**	**$ 1,400,000**	**$ 800,000**	**$ 900,008**	**$ 325,008**	**$ 575,008**
Net Cash Flow	$ (228,434)	$ 273,099	$ (303,159)	$ 599,715	$ 808,660	$ 695,000	$ (258,303)	$ (270,000)	$ (603,000)	$ (100,508)	$ (163,008)	$ (413,008)
Without New Grant Income								**$ (270,000)**	**$ (703,000)**	**$ (200,508)**	**$ (263,008)**	**$ (513,008)**
Available Cash in Bank Balance	**$ 646,133**	**$ 919,232**	**$342,973.95**	**$ 1,518,947**	**$ 1,151,634**	**$ 2,213,947**	**$ 893,331**	**$ 1,943,947**	**$ 1,340,947**	**$ 1,240,439**	**$ 1,077,431**	**$ 664,423**

			Opening Bal	**12/10/2024**	**$ 893,331**		**Agg. projectic**	$ (270,000)	$ (873,000)	$ (973,508)	$ (1,136,516)	$ (1,549,524)
							Agg. worst	$ (270,000)	$ (973,000)	$ (1,173,508)	$ (1,436,516)	$ (1,949,524)

1. Money Potentially Raised from Donors By President. Also Represent Donations from Foundations/Corporations
2. Fundraising Campaign
3. Potential foundation awards (February-June 2025)
4. Current Wellcome Trust Award Reimbursement. Project ends in 2026. 350k Projected First Installment of N4H second round. 300k in August the second installment for YR 1 N4H
5. Final Reimbursements on Closed Awards for SABREnet and World Bank. **IUCN GIZ Project Remaining**
6. Negotiations in progress for legal fee reimburseme**Reimbursement Shifted to December as resolution has not been reached**
7. For Travel Reimbursement/ Cancellations, HealthCare Reimbursements. Anything non project/donation related
8. NIH is asking for 1 final invoice submission by December 5th. **Requested Extension to December 13th. Reimbursements could extend in February+**
9. Autopay on Rent Stopped. Meeting with Landlord 2nd week of December to discuss scenarios

30-Jun-25	**31-Jul-25**	**31-Aug-25**	**30-Sep-25**	**31-Oct-25**	**30-Nov-25**	**31-Dec-25**		
$ 25,000	*$ 25,000*	*$ 25,000*	*$ 25,000*	*$ 25,000*	*$ 25,000*	*$ 25,000*		
$ 20,000	*$ 60,000*	*$ 60,000*	*$ 60,000*	*$ 60,000*	*$ 60,000*	*$ 60,000*		
$ 17,000	*$ 17,000*	*$ 17,000*	*$ 17,000*	*$ 17,000*	*$ 17,000*	*$ 17,000*		
			$ 100,000					
$ 100,000	*$ 100,000*	*$ 100,000*	*$ 100,000*	*$ 100,000*	*$ 100,000*	*$ 100,000*		
	$ 35,000	$ 300,000		$ 35,000		$ 35,000		
$ 7,500	$ 7,500	$ 7,500	$ 7,500	$ 7,500	$ 7,500	$ 7,500		
$ 169,500	**$ 244,500**	**$ 509,500**	**$ 309,500**	**$ 244,500**	**$ 209,500**	**$ 244,500**		
30-Jun-25	**31-Jul-25**	**31-Aug-25**	**30-Sep-25**	**31-Oct-25**	**30-Nov-25**	**31-Dec-25**		
$ 190,000	$ 190,000	$ 190,000	$ 190,000	$ 190,000	$ 190,000	$ 190,000		
$ 25,000	$ 25,000	$ 25,000	$ 25,000	$ 25,000	$ 25,000	$ 25,000		
$ 7,508	$ 7,508	$ 7,508	$ 7,508	$ 7,508	$ 7,508	$ 7,508		
$ 22,500	$ 22,500	$ 22,500	$ 22,500	$ 22,500	$ 22,500	$ 22,500		
$ 20,000	$ 20,000	$ 20,000	$ 20,000	$ 20,000	$ 20,000	$ 20,000		
$ 25,000	$ 25,000	$ 25,000	$ 25,000	$ 25,000	$ 25,000	$ 25,000		
$ 10,000	$ 10,000	$ 10,000	$ 10,000	$ 10,000	$ 10,000	$ 10,000		
-	$ 125,000	-	-	-	$ 150,000	-		
$ 300,008	**$ 425,008**	**$ 300,008**	**$ 300,008**	**$ 300,008**	**$ 450,008**	**$ 300,008**		
$ (130,508)	$ (180,508)	$ 209,492	$ 9,492	$ (55,508)	$ (240,508)	$ (55,508)		
$ (230,508)	**$ (280,508)**	**$ 109,492**	**$ (90,508)**	**$ (155,508)**	**$ (340,508)**	**$ (155,508)**		
$ 533,915	**$ 353,407**	**$ 562,899**	**$ 572,391**	**$ 516,883**	**$ 276,375**	**$ 220,867**		
$ (1,680,032)	$ (1,860,540)	$ (1,651,048)	$ (1,641,556)	$ (1,697,064)	$ (1,937,572)	**$ (1,993,080)**	Agg 2025 Cash Flow - projection	
$ (2,180,032)	$ (2,460,540)	$ (2,351,048)	$ (2,441,556)	$ (2,597,064)	$ (2,937,572)	**$ (3,093,080)**	Agg 2025 Cash flow - worst	

Payables

Vendor	Amount	Notes
GFP (Office Lease)	$400,000	Per Jarret and Stephen Recommendation what could cost to break lease. Unknown until meeting with Landlord 2nd week in December
Severance	$1,060,000	Unlikely, if forced to close, Severance for Remaining Staff

Legal Payables to Date

Vendor	Amount	Notes
Steptoe	$426,000.00	Invoices Through October- Work has slowed down since August
Arnold & Porter	$200,000.00	November 2024-January 2025- $ comes from? Investment Fund?
Getzler & Henrich	$50,000.00	10k Per Month Through March 2025- $ comes from? Investment Fund?
TKD	$75,000.00	15k Per Month through March 2025
Total Legal Liabilities	**$751,000.00**	

Affidavit Exhibit 2

FY25 Contingent Liabilities			
	Vendor	**Amount**	
Probable			
	DTRA	$ 1,150,000	basis)
	BKD	$ 35,000	Cost of EcoHealth Alliance Annual Audit to maintain good standing and comply with Fed. requirements
	GFP Real Estate	$ 100,000	If moving to smaller space in same building: loss of security deposit ($250k) and moving costs ($100k)
		$ 1,285,000	
Possible			
	Steptoe	$ 100,000	Post December delays and back-and-forth with DHHS Suspension and Debarment Officer
Not Likely			
	GFP Real Estate	$ 2,500,000	Full Obligation for Lease
	ADP	$ 1,200,000	Employee Severances if all staff laid off abruptly
	TKD	$ 100,000	If 3 New Lawsuits. (Last lawsuit over 9 months ago. Of the 8 lawsuits, 6 summarily dismissed to date.)

Notes

1) All amounts best estimates as of 21 August 2024

2) No "possible" or "not likely" funds are in current cash flow projections

Affidavit Exhibit 3


EcoHealth
Alliance

July 2024

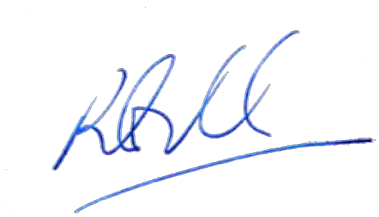
This EcoHealth Alliance Employee Handbook establishes policies, procedures, benefits, and working conditions that will be followed by all EcoHealth Alliance employees as a condition of their employment. The EcoHealth Alliance Employee Handbook is not a contract of employment nor is it intended to create contractual obligations of any kind. The policies and procedures outlined in this handbook will be applied at EcoHealth Alliance's discretion. All previously issued handbooks, are hereby superseded. EcoHealth Alliance reserves the right to deviate, withdraw, or change from the policies, procedures, benefits, and working conditions described in this handbook at any time, for any reason and without prior notice.

Building on over 40 years of ground-breaking science, EcoHealth Alliance is a global environmental health non-profit organization dedicated to protecting wildlife and public health from the emergence of disease. Our success has been made possible and is maintained by operating in a common effort with all of our employees to provide the best possible interactions to everyone with whom we work. EcoHealth Alliance strives to provide an employee-friendly environment in which goal-oriented individuals thrive as they achieve ever more demanding challenges. EcoHealth Alliance values the talents and abilities of all our employees and seeks to foster an open, cooperative, and dynamic environment.

Please review the policies, procedures, working conditions, and benefits described in this handbook. You will be asked to affirm that you have read, understand, agree to abide by, and acknowledge your receipt of this employee handbook.

This handbook and all EcoHealth Alliance policies are reviewed annually, at a minimum. Following such annual review and any necessary update, the employee handbook and policies will be redistributed to staff. You will be asked annually to confirm that you have reviewed this handbook as well as the EcoHealth Alliance policies.

Welcome to EcoHealth Alliance!



Dr. Peter Daszak
President, EcoHealth Alliance

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1 Workplace Policies

EcoHealth Alliance will make every effort to notify employees when an official change in policy or procedure has been made, but employees are responsible for their own up-to-date knowledge about policies, procedures, benefits, and working conditions. No provision in this employee handbook may be waived without written permission from the President or designee. Such a waiver, if granted, applies only to the employee for whom the waiver was granted at the time and with the conditions of the waiver.

For employees residing outside of New York State and within the United States, EcoHealth Alliance will make all reasonable efforts to comply with all relevant state-specific guidelines. New York State laws and guidelines will supersede the local state laws for those employees not residing in New York state if the New York law provides a greater benefit to the employee. Any questions regarding Ecohealth Alliance's workplace policies should be directed to the President's office or the Chief Financial Officer.

1.1 Employment At-Will

Employment at EcoHealth Alliance is at-will. This means that both the employee and EcoHealth Alliance may terminate the employment relationship at any time, with or without notice, for any lawful reason. Nothing in this Handbook or in any other document or oral statement shall limit the at-will nature of the employment relationship.

1.2 Equal Employment Practices

EcoHealth Alliance is an equal opportunity employer and follows a policy of administering all employment decisions and personnel actions without regard to race, color, religion, creed, gender, national origin, veteran status, sexual orientation, gender identity, age, handicap or physical or mental disability, genetic predisposition, military status, marital status, changes in marital status, pregnancy, or parenthood, when the reasonable demands of the position do not require these distinctions, or any other status protected under applicable federal, state or local law. Consistent with the obligations of state and federal law, EcoHealth Alliance will make reasonable accommodations for qualified individuals with disabilities. Any employee who needs a reasonable accommodation should contact the Human Resources Department.

2 Affirmative Action Statement

EcoHealth Alliance maintains an affirmative action policy, which provides equal employment opportunity to all persons without regard to race, color, religion, creed, gender, national origin, veteran status, sexual orientation, gender identity, age, handicap or physical or mental disability, genetic predisposition, military status, marital status, changes in marital status, pregnancy, or parenthood, when the reasonable demands of the position do not require these distinctions, or any other category protected under applicable federal, state or local law. EcoHealth Alliance is committed to equal opportunity for all applicants and employees in personnel matters including recruitment and hiring, benefits, training, promotion, compensation, transfer, and layoff or termination. EcoHealth Alliance strives for a staff that reflects diversity. All supervisors and members of the management team are expected to provide equal opportunities for all

employees in accordance with EcoHealth Alliance's affirmative action policy.

3 Discrimination and Harassment

It is the policy of EcoHealth Alliance that all employees should be able to enjoy a work environment that is free of discrimination and harassment. This requires that all employees at all levels of the organization treat each other as well as every individual with whom there is any contact in the course of employment with courtesy and respect. EcoHealth Alliance strictly forbids discrimination or harassment of any kind, including discrimination based on race, color, religion, creed, gender, national origin, veteran status, sexual orientation, gender identity, age, handicap or physical or mental disability, genetic predisposition, military status, marital status, changes in marital status, pregnancy, or parenthood, when the reasonable demands of the position do not require these distinctions, or any other category protected under applicable federal, state or local law. Any form of harassment, whether by a fellow employee, supervisor, or by a third party doing business with EcoHealth Alliance, will not be tolerated.

Employees who believe they have been subject to discrimination or harassment or witnessed it in the workplace, are expected to immediately bring this to the attention of the Human Resources Department, the President, their immediate supervisor, or any member of management with whom there is a level of comfort to express the complaint. Your complaint will be promptly, thoroughly, and impartially investigated. There will be no retaliation against any employee who files a complaint in good faith, even if the results of the investigation produce insufficient evidence to support the complaint.

EcoHealth Alliance employees must abide at all times by the EcoHealth Alliance Policy Against Discrimination, Harassment, and Sexual Exploitation and Abuse. Staff will review and confirm acknowledgement of any updates to the EHA Policy Against Discrimination, Harassment, and Sexual Exploitation and Abuse yearly during Performance Reviews. EcoHealth Alliance reserves the right to update its policies more frequently than once per year as necessary. Any such updates will be distributed to staff when finalized.

4 Employee Concern Policy

All EcoHealth Alliance employees have the ability to bring their concerns to management without fear of retaliation or other adverse consequences. This policy covers the discovery of financial fraud, theft, or other malfeasance. In such instances, the employee shall bring these issues to the attention of an immediate supervisor, the Human Resources Officer, EcoHealth Alliance's President, or a member of management with whom there is a level of comfort to express complaint. It is EcoHealth Alliance's policy that all such matters will be handled with appropriate care and discretion and receive a prompt, thorough, and impartial investigation. When an employee brings a complaint to the attention of any member of management, the Human Resources Officer will be notified and an investigation of the allegations will be undertaken promptly. Such investigation shall generally include, at a minimum, interviews

with all persons identified as having direct and personal knowledge of the incident(s) in question.

If the investigation reveals that inappropriate workplace conduct has occurred, management will take prompt and effective remedial action. Such measures are designed to put an immediate stop to the concern as well as prevent its recurrence. All employees are expected to cooperate fully with any ongoing investigation regarding a harassment or other incident of prohibited activity. Employees who believe they have been unjustly charged with harassment or other prohibited activity can defend themselves verbally or in writing at any stage of the investigation. Management retains the right to take whatever action that may be appropriate under the circumstances up to and including terminating the employment of the offending person or persons.

4.1 Retaliation Prohibited

In addition, retaliation against employees for reports or complaints of any nature, or for cooperating in the investigation of a report or complaint, is unlawful and will not be tolerated. Any retaliation will warrant disciplinary action, up to and including terminating the employment of the offending person.

4.2 Open Door Policy

EcoHealth Alliance believes it is helpful to provide employees with channels of communication so they can have issues or questions promptly addressed. Therefore, you should feel free to contact your supervisor, the Human Resources Officer, or any member of management with whom you feel comfortable with any employment-related concerns or issues that you may have. Any investigation undertaken in response to an employee's issue or concern will be handled in a manner substantially similar to the procedure set forth in the EcoHealth Alliance Policy Against Discrimination, Harassment, and Sexual Exploitation and Abuse.

5 Background Checks

Offers of employment at EcoHealth Alliance may be contingent upon the results of a background check. Background checks may be conducted on applicants who are offered employment in order to verify the following:

- Social Security Number: validates the applicant's Social Security Number, date of birth, and former addresses.
- Prior Employment: confirms applicant's prior employment, including dates of employment, position held, and additional information available pertaining to performance rating, reason for departure, and eligibility for rehire. This verification will be conducted on the employee's previous five years of employment.
- Personal and Professional References: applicant's references will be contacted and requested to provide brief testimonials and confirmation of relationship to applicant.
- Education: confirms applicant's educational background, including the years attended and the degrees received.

- Criminal History: includes review of criminal convictions and probation. The following factors will be considered for applicants with a criminal history:
    - The nature of the crime and its relationship to the position.
    - The time since the conviction.
    - The number of convictions.
    - Whether hiring, transferring or promoting the applicant would pose an unreasonable risk to EcoHealth Alliance, its employees, or its collaborators, customers, and vendors.
- Motor Vehicle Records: if applicable to the position, this provides a report on driving history.

5.1 Credit Checks

EcoHealth Alliance may conduct a credit check only for current and prospective executive-level employees in positions involving responsibility for funds or assets worth $10,000 or more. EcoHealth Alliance complies with all applicable Federal and New York State laws regarding the collection, storage, use, and disposal of information obtained as part of a credit check.

5.2 Procedure

Following an offer of employment, prospective employees may be requested to sign a background check authorization form. Upon receipt of the signed form, Human Resources will conduct a background check and share the results with the hiring manager or team. In instances of negative or incomplete information, the potential risks and liabilities will be assessed by the President or designees to determine whether the prospective employee should be hired. If a decision not to hire a prospective employee is made based on the results of a background check, then the prospective employee will be (a) provided with a copy of the credit or other background report and (b) permitted to respond to the information within three business days during which the position will be held open. Background check information will be maintained in a file separate from employees' personnel files for a minimum of five years.

6 Drug and Alcohol Policy

The unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance, illicit drug, or alcohol by EcoHealth Alliance employees while on EcoHealth Alliance business or on EcoHealth Alliance premises is prohibited. EcoHealth Alliance premises include all land, property, buildings, structures, installations, parking lots, means of transportation owned by or leased to EcoHealth Alliance or otherwise being utilized for EcoHealth Alliance business and private vehicles parked on EcoHealth Alliance premises. Employees are also prohibited from reporting to work while under the influence of alcohol, illegal narcotics, drugs or other controlled substances, except if the controlled substances are taken pursuant to the instructions of a licensed healthcare provider. The lawful and moderate use of alcohol is permitted at certain specified EcoHealth Alliance events approved by the President or designee and only when used by individuals over the legal drinking age.

Violation of this rule will result in disciplinary action, up to and including termination of employment. In addition, any such substances found during the course of enforcing this policy

may be turned over to the appropriate law enforcement authorities and may result in prosecution.

Employees suspected of unlawful possession of or use of alcohol, illegal narcotics, drugs or other controlled substances at the workplace are subject to inspection and search, with or without notice. Employees' personal belongings, including any bags, purses, briefcases, and clothing, and all EcoHealth Alliance property, also are subject to inspection and search, with or without notice.

7 Health and Safety

EcoHealth Alliance is committed to maintaining a healthy and safe work environment and to eliminating recognized safety and health hazards in the workplace. EcoHealth Alliance requests that all employees share in this commitment and identify any unsafe conditions to a trusted supervisor. It is the responsibility of each employee to adhere to this policy in order to ensure one's own personal safety and the safety of others as well as to promptly report any concerns to management.

7.1 Accidents/Emergencies

Employees injured on the job, regardless of the severity of the injury, must report the injury to a supervisor and file an accident report as soon as practicable. Each employee's cooperation in completing the necessary medical forms and accident reports is essential as EcoHealth Alliance may be required to submit documentation about or pertaining to an injury or illness to appropriate agencies. Complete and timely documentation is essential in order to expedite claims processing. A neglected injury can become a serious problem if not treated promptly. If the injury is of a serious nature, arrangements will be made to transport the injured employee to the nearest medical facility for treatment. It is the responsibility of each employee to adhere to the following:

- Work according to good safety practices
- Refrain from any unsafe act that might endanger oneself or co-workers
- Use all safety devices provided for one's own protection
- Report any unsafe situation or acts immediately to a supervisor

7.2 Fire Prevention

Electrical equipment should be turned off when not in use and employees should notify a supervisor of any equipment that has cracked or exposed wiring, is causing a shock or emitting sparks, or appears to be a potential fire hazard. Fire drills are held periodically to keep employees aware of fire safety equipment and procedures. Employees should familiarize themselves with the location of fire exits, alarms and extinguishers. If an employee sees smoke or fire, a call should be made to security or the fire department. If it is a small fire, a nearby fire extinguisher may be used as necessary. Periodically, the fire alarm may sound when there is no smoke or fire because the building system is being tested. If this is the case, staff will be notified before the alarm sounds.

- If evacuation is called for, employees should use the closest unaffected exit. Employees

should walk in single file, holding the stair railing and stay to the right of the staircase. Proceed quickly and calmly. Do not run.
- If there is smoke, stay low to the floor to avoid smoke inhalation.
- Once exited, move as far away from the building as possible for your safety and make room for emergency vehicles.
- Only if time permits before evacuation of the building, secure classified information, turn out lights, shut off equipment and close doors.

7.3 Power Failures

In the event of a power failure, shut off all computer equipment to avoid possible damage from a power surge when the electricity is reactivated. Once the building has been exited, it is not advisable to re-enter until power is restored.

7.4 Office Closings and Delayed Openings

In the event of unusually inclement weather or another emergency, EcoHealth Alliance's President or designee will make the decision to close the office. Should this occur, every attempt will be made to notify all employees using email, group text messaging, or other reasonable means of communication. Employees will be expected to work remotely unless otherwise specified.

If EcoHealth Alliance is officially closed for business during normal business hours due to severe weather conditions or other circumstances, full-time non-exempt employees will be paid for those hours missed for up to three (3) days. Full-time and part-time exempt employees will be paid their regular salary provided that they perform work during the given week. Should an emergency closing occur while an employee is already on paid or unpaid leave time (e.g. sick, vacation, or personal leave), he or she is not entitled to additional wages. Employees who do not report for work because of the weather, in the absence of an official closing that day, and who are unable to work from home or make arrangements with their supervisor, will be charged one day of vacation or personal leave time.

7.5 No Smoking Policy

Smoking is strictly prohibited on EcoHealth Alliance premises. Smoking is only allowed in designated areas outside the building. This includes all tobacco based products and electronic nicotine delivery systems (known as e-cigarettes, e-cigars, e-hookahs, and e-pipes.) All smoking residue (cigarette butts, ashes, matches, etc.) must be disposed of in the proper receptacles and not left on the ground. Smoking outside the designated area will result in disciplinary action up to and including termination of employment.

8 Workers' Compensation

EcoHealth Alliance employees are covered by Workers' Compensation insurance for work-related injuries and illnesses. EcoHealth Alliance pays the total cost of this insurance. Coverage is applied to approved medical charges and may provide partial payment for lost wages as a result of the injury, as provided by law. If an employee becomes ill or gets injured

while at work, they must notify their supervisor immediately. Failure to do so may result in a loss of benefits under the state workers' compensation law."

9 Security

EcoHealth Alliance seeks to maintain a secure work environment for its employees and visitors, and to safeguard EcoHealth Alliance's property and confidential information. Security and loss prevention is a responsibility all EcoHealth Alliance employees share. Employees are expected to cooperate in maintaining a secure environment by abiding by all security measures implemented by EcoHealth Alliance and by immediately reporting any safety concerns.

Desks, files, electronic storage, including e-mail and voice mail, may be provided for your convenience, but remain the property of EcoHealth Alliance at all times. Therefore, they, as well as any articles found within them, or any other EcoHealth Alliance property, can be inspected by any agent of EcoHealth Alliance at any time, with or without prior notice and/or in your absence. EcoHealth Alliance reserves the right to require that employees and visitors entering or leaving EcoHealth Alliance premises permit the inspection of anything brought to or from EcoHealth Alliance, including, but not limited to, purses, bags, briefcases, packages, clothing, and vehicles. These policies are established for the protection of, and in the best interests of EcoHealth Alliance and those employed by EcoHealth Alliance. Failure to comply with this policy may result in disciplinary action, up to and including termination of employment.

All full-time employees will be issued an identification card by the building management. Employees are expected to carry this identification card with them during work hours. Cards should not be shared with non-employees or other staff members. Violation of this policy may result in revocation of the identification card and limited building access. If an identification badge is lost or stolen, a replacement must be obtained. Lost or stolen cards should be reported to the Office Management team, as soon as possible. Excessive loss or damage to cards may lead to disciplinary action. Replacement cards may incur a fee, as decided by the building or EcoHealth Alliance management. Upon termination, employees will be required to return identification cards to the Human Resources Department.

10 Workplace Violence

EcoHealth Alliance maintains a workplace that is safe and free of any and all threats of violence or acts of violence. EcoHealth Alliance has zero tolerance for any kind of workplace violence or threat of violence. Prohibited acts include, but are not limited to, any threats of violence, destruction of personal or EcoHealth Alliance property, acts of physical violence, intimidation or behavior that may endanger another. All employees, including supervisors and temporary employees, should be treated with courtesy and respect at all times. Employees are expected to refrain from fighting, "horseplay", or other conduct that may be dangerous to others. Firearms, weapons, and other dangerous or hazardous devices or substances are

prohibited from EcoHealth Alliance's premises or while on EcoHealth Alliance business. All employees are responsible for helping to create an environment of mutual respect for each other and visitors, following all policies, procedures, and practices, and for assisting in maintaining a safe and secure work environment. Acts of violence by or against any of our employees where any work-related duty is performed will be thoroughly investigated and appropriate action will be taken.

11 Communications

11.1 Electronic communications policy

Electronic communications systems such as e-mail and voicemail are integral to EcoHealth Alliance's operations. EcoHealth Alliance also provides employees with access to the Internet. As with other forms of workplace communication, EcoHealth Alliance has legitimate and practical concerns regarding the use of its e-mail, voice mail, Internet, and other electronic communication systems. EcoHealth Alliance's email, voice mail, and other electronic communication systems and its provision of Internet access are intended to serve the interests of EcoHealth Alliance and those it serves and, as such, are to be used primarily for EcoHealth Alliance business. Use of these systems and the Internet must be consistent with all policies and practices of EcoHealth Alliance. Violations of such policies and practices by employees may result in loss of use of the system in question or in other forms of disciplinary action, up to and including termination of employment. While EcoHealth Alliance recognizes that these systems are occasionally used for personal purposes, any personal use of the email and voicemail systems or the Internet remains subject to this policy.

The use of language or imagery that EcoHealth Alliance deems to be foul, obscene, sexually explicit, harassing, or otherwise inappropriate when sending messages on e- mail, voice mail, or via other electronic communication is prohibited, as is the circulation of messages that may harass, annoy, or intimidate other employees or third parties. Employees who receive such inappropriate messages should immediately report them to their supervisors or to the Human Resources Officer. Employees may not use the Internet, including EcoHealth Alliance-provided web browsers, to send, display, download or print potentially offensive messages, pornographic or sexually explicit pictures, or derogatory religious, racial, or other materials. It is important to be aware that Internet sites "visited" electronically from `EcoHealth Alliance's computer resources, including equipment accessed from the user's home, identify EcoHealth Alliance as the originator of each message or "visit." As such, any use of EcoHealth Alliance's electronic resources to visit sites that could negatively impact EcoHealth Alliance's reputation and name is unacceptable.

- Copyrighted materials belonging to third parties may not be transmitted without proper authorization.
- Employees must justify and receive approval from their supervisor for the purchase of all necessary software. Anyone using software on a EcoHealth Alliance computer is responsible for complying with that software's licensing agreement. Periodic unannounced audits of computers may be performed to ensure compliance with this policy. If an illegal copy of software is discovered, it will be removed and the offending employee may be subject to

disciplinary action, up to and including termination of employment.

- All messages, internal or external, transmitted through electronic communication systems must be treated with the same degree of security and confidentiality as written documents. Voicemail messages should only be forwarded to employees with a "need-to-know" the information contained in the message. To be sure that EcoHealth Alliance preserves a consistent public impression regarding its business and operations, and because even positive statements may have a detrimental impact on EcoHealth Alliance where highly-regulated areas are involved, employees are prohibited from posting or publishing statements regarding EcoHealth Alliance's business or operations on any public media, including but not limited to electronic bulletin boards, social media, and web-based "chat rooms," unless such messages have been reviewed and authorized by the President of EcoHealth Alliance prior to publication.
- EcoHealth Alliance's electronic communications systems (including all computer hardware, software, voicemail, the network and all stored data) are the property of EcoHealth Alliance. EcoHealth Alliance reserves the right to monitor usage of electronic systems by its employees and will review any communications on its systems for any legitimate business purpose. While employees may need a password or other personal code to access their computer, email or voicemail systems, EcoHealth Alliance is able to override all passwords and access these systems without using the password. Users of these systems do not have a privacy right in the contents of their computer system, including messages sent, received or stored on the e-mail or voicemail systems or in their use of the Internet. Passwords to these systems exist for the benefit of EcoHealth Alliance, to enable employees to properly manage their work product and protect that work product from third persons. Employees should have no expectation that the ability to choose a password for a system in any way limits EcoHealth Alliance's ability or right to monitor their activity on that system.
- EcoHealth Alliance regularly retains and deletes voicemail messages from its systems and maintains the right to alter its practices in this area at any time with or without notice to employees.
- For purposes of this policy, a "legitimate business purpose" for reviewing email or voicemail communications and Internet use includes, but is not limited to, the following situations:
    - Routine monitoring for quality control and to ensure proper operation of the systems and compliance by employees with EcoHealth Alliance's workplace policies, including its policies on harassment, use of trade secrets, and customer information;
    - Investigations to determine if there have been violations of EcoHealth Alliance 's workplace policies or criminal or civil wrongdoing by e- mail, voice mail and Internet users where the wrongdoing may have included the use of EcoHealth Alliance's electronic systems; and
    - Where the user is unavailable and there is a business need to review the contents of electronic communications on an expedited basis.

Violations of EcoHealth Alliance's electronic communications policy may result in loss of use of the system in question or in other forms of disciplinary action, up to and including termination of employment.

11.2 Solicitation and Distribution of Literature

EcoHealth Alliance has established rules applicable to all employees that govern solicitation and distribution of written and electronic material during working time and entry onto EcoHealth Alliance premises and work areas. All employees are expected to comply with the following rules:

- No employee shall solicit or promote support for any cause or EcoHealth Alliance during their working time or during working time of employees at whom such activity is directed
- No employee shall distribute or circulate any written or printed material in work areas during their working time or during the working time of employees at whom such activity is directed
- Under no circumstances will non-employees be permitted to distribute written material on EcoHealth Alliance property.

"Working time" includes all time for which an employee is paid and/or is scheduled to be performing services for EcoHealth Alliance. It does not include authorized break periods, meal periods, or periods in which an employee is not performing and is not scheduled to be performing services or work for EcoHealth Alliance. "Solicitation" includes, but is not limited to, requesting funds, signatures, conducting membership drives, offering to sell merchandise or services, eliciting membership in clubs or organizations, or engaging in any other similar activities.

11.3 Bulletin Boards

Bulletin Boards are reserved for the exclusive use of EcoHealth Alliance for posting EcoHealth Alliance publications including scientific papers, work-related notices, and notices that must be posted pursuant to local, state, and federal laws. From time to time, special notices and information for employees will be posted by EcoHealth Alliance on the bulletin boards. Please check the boards regularly for such notices. Employee postings are not permitted except where explicitly indicated in writing and permitted by the Human Resources Department.

11.4 Confidentiality

All information and know-how, whether or not in writing, of a private, secret or confidential nature concerning EcoHealth Alliance business, developments, internal matters or financial affairs (collectively, "Confidential Information") is and shall be the exclusive property of EcoHealth Alliance. By way of illustration, but not limitation, Confidential Information may include EcoHealth Alliance business plans, terms and conditions of contractual arrangements, financial data, sales data, personnel data, fundraising contacts and strategies, market research and scientific or other technical information developed by EcoHealth Alliance.

Employees may not disclose any Confidential Information to others outside EcoHealth Alliance or use the same for any unauthorized purposes, either during or after the employee's employment, unless and until such Confidential Information has become public knowledge

without fault by the employee. All files, letters, electronic communications, reports, records, data, drawings, or other written, photographic or tangible materials containing Confidential Information, whether created by the employee or others which shall come into the employee's custody or possession, shall be and are the exclusive property of EcoHealth Alliance to be used by the employee only in the course of employment and in the best interests of EcoHealth Alliance. All such records or copies thereof and all tangible property of EcoHealth Alliance in employee custody or possession shall be delivered to EcoHealth Alliance, upon (i) a request by EcoHealth Alliance or (ii) the termination of employment. After such delivery, the employee shall not retain any such records or copies thereof or any such tangible property.

An employee's obligation not to disclose or to use information, know-how and records of the type set forth in this policy also extends to such types of information, know-how, records and tangible property of customers of EcoHealth Alliance or suppliers to EcoHealth Alliance or other third parties who may have disclosed or entrusted the same to EcoHealth Alliance or to the employee in the course of EcoHealth Alliance's business. An employee's obligation not to disclose or to use information, know-how and records of the type set forth in this policy extends beyond the termination of the employment relationship with EcoHealth Alliance.

11.5 Copyrights and Royalties

EcoHealth Alliance has the right to any materials developed by employees in the course and scope of her or his employment. It is the policy of EcoHealth Alliance to copyright written material, photographs, drawings, prints, and other materials when reproduction by others would be detrimental to EcoHealth Alliance.

11.5.1 Photographs and Digital Media

In the event EcoHealth Alliance paid for the film, photography equipment, or photographs, EcoHealth Alliance holds the copyright to them. If an employee uses his or her own film, photography equipment, or photographs during EcoHealth Alliance activities, he or she must give EcoHealth Alliance unlimited use of the photos, but the employee would hold the copyright to them.

11.5.2 Written Material

EcoHealth Alliance owns all articles written by EcoHealth Alliance employees on EcoHealth Alliance time. Articles written by employees on their personal time are owned by the employee.

11.6 Speaking to the Media

An employee may not speak to the media as an official or unofficial spokesperson of EcoHealth Alliance without prior approval from their supervisor. All inquiries from the media should be referred to the EcoHealth Alliance Public Relations Director . Should an employee receive a media inquiry, they should respond that "I have no authority to respond to your

request. I will forward your question to our Public Relations Director." Failure to adhere to this policy may result in disciplinary action, up to and including termination of employment.

12 EcoHealth Alliance Property

All equipment, supplies, and other items issued to employees are exclusively the property of EcoHealth Alliance. Employees are responsible for ensuring that such items are properly maintained and report any malfunctions immediately to their supervisor or appropriate staff. Removal of EcoHealth Alliance property from EcoHealth Alliance's premises may be done only with authorization of appropriate management personnel. Upon termination of employment or upon EcoHealth Alliance's request, all EcoHealth Alliance property in an employee's possession or control must be immediately returned to EcoHealth Alliance.

13 Other Office Policies

13.1 Outside Employment and Conflict of Interest

Employees may engage in outside employment provided that it does not interfere with job performance and attendance. All outside employment needs to be acknowledged in writing and provided to the employee's supervisor or the Human Resources Officer. An employee's decision to pursue outside employment may neither reveal nor depend upon confidential information regarding EcoHealth Alliance or those with whom EcoHealth Alliance does business. Under no circumstances should an EcoHealth Alliance employee engage in outside work that could be deemed in conflict of interest with EcoHealth Alliance's business. A conflict of interest occurs when an EcoHealth Alliance employee places or finds themselves in a position where private interests may conflict with the interests of EcoHealth Alliance or have an adverse effect on the employee's motivation or the proper performance of their job.

During their employment with EcoHealth Alliance, full-time employees shall devote their full time and best efforts to the business of EcoHealth Alliance to protect the interests of both the employees and EcoHealth Alliance. Employees must disclose to their supervisor or EcoHealth Alliance's Human Resource Officer all non-leisure related outside activities they intend to engage in that may present either a potential or apparent conflict of interest or potentially impact the employee's job performance. Such activities may only be undertaken after written approval of the President of EcoHealth Alliance or designee. If EcoHealth Alliance determines that an employee's outside activities interfere with performance or the ability to meet the requirements of the employee's position, the employee may be required to terminate the outside activity, if they wish to remain employed at EcoHealth Alliance.

13.2 Employment of Relatives and Fraternization

EcoHealth Alliance permits the hiring of relatives, life partners, or significant others in circumstances that do not present an actual or potential conflict of interest. EcoHealth Alliance, in its sole discretion, will determine whether an actual or potential conflict of interest exists. Relatives will not be permitted to directly or indirectly supervise one another and relatives will not be hired, promoted or transferred into the same department as an employee who is a relative. Employees should also not be assigned to positions in which they have

access to salary information, performance reviews, or other confidential information concerning a relative. If two employees become related after employment and their positions present a conflict with this policy, one of the two should be reassigned to another position as available. If this is not possible, the situation will be discussed and resolved with the employees, their respective supervisors, and Human Resources.

EcoHealth Alliance prohibits line managers, including supervisors, from engaging in romantic relationships with employees whom they supervise directly or indirectly. Relationships between line managers and the employees they supervise directly or indirectly raise issues of equity, fairness, and favoritism, and therefore will not be permitted. If EcoHealth Alliance becomes aware of any such undisclosed relationships, both parties will be interviewed, and if the line manager or supervisor and supervisee relationship is not resolved, one or both employees may be required to leave EcoHealth Alliance employment.

Relationships that are not between employees and their line-managers or not between supervisors and their direct reports, will not be addressed unless these become disruptive to the workplace or job performance.

13.3 Recycling

EcoHealth Alliance supports environmental awareness by encouraging recycling and waste management in its business practices and operating procedures. EcoHealth Alliance also commits to the purchase, use, and disposal of products and materials in a manner that best uses natural resources and minimizes negative effects on the environment. EcoHealth Alliance follows all local regulations regarding recycling and trash removal. EcoHealth Alliance encourages reducing and, when possible, eliminating the use of disposable products. Source reduction decreases the consumption of valuable resources through such workplace practices as:

- Two-sided photocopying
- Computerized business forms
- Minimal packaging
- Eliminating fax cover sheets
- Reusing paper clips, folders, binders, and packaging materials
- Turning off lights and computers when not in use.

Whenever possible, employees are encouraged to purchase products for the workplace that contain recycled or easily recyclable materials. Buying recycled products supports recycling and increases the market for recyclable materials.

13.4 Lactation Policy

As part of family-friendly policies and benefits, Ecohealth Alliance supports breastfeeding employees by accommodating those who wish to express breast milk during the workday when separated from a newborn child. Any employee who is breastfeeding will be provided reasonable break times and a private, designated space to express breast milk. Nursing

employees requiring this accommodation must notify the Office Manager as soon as possible. EcoHealth Alliance will provide a secure, locked refrigerator with the sole use of storing breast milk. Employees storing breast milk in the refrigerator assume all responsibility for the safety of the milk and the risk of harm for any reason, including improper storage, refrigeration, and tampering. Break times for lactation of more than 20 minutes in length may be unpaid and the employee should accurately record this break period on her time record.

13.5 Guest and Pet Policy

Ecohealth Alliance staff are permitted to bring guests and pets to the office.

Staff must notify Human Resources and receive confirmation for all guests and pets that will visit the office. Guests and pets must be non-disruptive and allow for reasonably quiet working conditions for other in-office staff. Staff are responsible for their respective guests or pets and any damages, accidental or otherwise, thereof.

Guests are considered family members or friends. EcoHealth Alliance staff are responsible for their guests and must always be present in the office with their guests unless specific arrangements have been made with Human Resources. Approval must be in writing and in advance. Staff should email hr@ecohealthalliance with the full name (first and last), cellphone, and email address of their guests to permit entry into the lobby QR code system for building access.

Pets must not be allowed to roam the office freely. Individual EcoHealth Alliance staff pet-owners are responsible for their pets at all times and may be requested to keep them in carriers or to respective office areas. Staff pet-owners are also responsible for fully cleaning up any pet accidents should these occur.

At EcoHealth Alliance's discretion, guests or pets may be required to leave the office or disallowed.

14 Employee Benefits

Eligibility for certain benefits may be contingent upon a number of factors, including an employee’s characterization by EcoHealth Alliance (e.g. full time, part-time, temporary), the number of hours an employee is regularly scheduled to work, and an employee’s length of service with EcoHealth Alliance. The actual terms and conditions of benefits are governed by the specific official benefit plan documents. To the extent a description of a benefit in this Handbook varies from the official plan documents, the official plan documents take precedence. Benefits offered by EcoHealth Alliance are an important part of EcoHealth Alliance’s commitment to its employees. EcoHealth Alliance reserves the right to terminate, suspend, withdraw, amend, or modify any of its benefits plans in whole or in part at any time, without prior notice, to the extent permitted by law.

The existence of these employee benefits and plans, in and of themselves, does not signify that an employee will be employed for the requisite length of time necessary to qualify for or

maintain these benefits and participate in any plan.

14.1 Medical Insurance

EcoHealth Alliance offers medical insurance that eligible regular full-time employees may select for themselves and their dependents. Such employees are eligible for medical insurance on the 1st day of the month after the employee's date of hire. Employees must sign up for medical insurance within 30 days of eligibility or they will have to wait until EcoHealth Alliance's annual open enrollment period. The open enrollment period is also the only time that changes can be made to medical coverage unless related to a qualifying event such as a birth, marriage, or loss of other medical coverage. Employees should consult with the Director of Finance for further details regarding eligibility, benefits and premium costs.

14.2 Medical Insurance Waiver

If an employee waives their health insurance benefit because they have other medical coverage, the employee must sign an Insurance Waiver. The waiver states that the employee was given the opportunity to join the EcoHealth Alliance plan and that the employee understands that they cannot re-enter the group plan until the annual open enrollment in October of each year, unless the employee experiences a qualifying event such as a birth, marriage, or loss of other medical coverage. The employee must provide proof of coverage in the form of a letter from the insurance carrier or employer. Employees who decide to waive the group health insurance will receive a monthly stipend, which amount shall be equal to that determined by EcoHealth Alliance in its sole discretion as of July 1 of every year. The stipend will be included in the last pay period of the month and is subject to all mandatory deductions.

14.3 Dental and Vision Benefits

EcoHealth Alliance offers dental and vision insurance plans that eligible regular full-time employees may select for themselves and their dependents. Such employees are eligible for dental insurance on the first day of employment. Employees must sign up for dental insurance within 30 days of eligibility or they will have to wait until EcoHealth Alliance's annual open enrollment period. The open enrollment period is also the only time that changes can be made to dental coverage unless related to a qualifying event such as a birth, marriage, or loss of other medical coverage. Employees should consult with the Human Resources Officer for further details regarding eligibility, benefits and premium costs.

14.4 Life Insurance

EcoHealth Alliance provides eligible employees with life insurance. A separate summary plan description of this program will be provided to employees upon their hire, or upon request to the Director of Finance. Employees should refer to the plan documents for eligibility requirements and the details of the plan.

14.5 Short-term and Long-term Disability Insurance

EcoHealth Alliance provides eligible employees with short-term and long-term disability insurance. A separate summary plan description of this program will be provided to

employees upon their hire, or upon request to the Human Resource Manager. Employees should refer to the plan documents for eligibility requirements and the details of the plans.

14.6 Pension Plan

EcoHealth Alliance has established a retirement plan with TIAA-CREF and will contribute 5%of an employee's annual salary into the plan. This contribution is independent of any employee withholding for retirement plan purposes. Enrollment begins after nine months of employment. EcoHealth Alliance will also match the first 3% of the employees' pension plan contribution.

15 Timekeeping and Compensation

15.1 Employment Status

EcoHealth Alliance maintains standard definitions of employment status and classifies employees for purposes of personnel administration and related payroll transactions as follows:

Exempt: Employees whose positions meet specific tests established by the Fair Labor Standards Act (FLSA) and who are therefore characterized by EcoHealth Alliance as exempt from overtime pay requirements.

Non-exempt: Employees whose positions do not meet FLSA exemption tests and who are paid one and one-half times their regular rate of pay for hours worked in excess of 40 hours in one week.

Regular Full-time: Employees regularly scheduled to work at least 35 hours per week. Generally, regular full-time employees may participate in any and all benefit programs that EcoHealth Alliance establishes and makes available to its employees from time to time, subject to the eligibility requirements of the applicable plan or policy.

Regular Part-time: Employees regularly scheduled to work more than 20 but less than 35 hours per week. Regular part-time employees may be eligible to participate in some benefit programs that EcoHealth Alliance establishes and makes available to its employees, subject to the eligibility requirements of the applicable plan or policy.

Temporary: This includes Employees who are hired for a pre-established period, usually during peak workloads, for vacation relief or for project work. Individuals defined by EcoHealth Alliance as temporary employees may work a full-time or part-time schedule and are ineligible for EcoHealth Alliance benefits and holiday pay.

15.2 Overtime

EcoHealth Alliance may require employees to work extra hours in addition to their regularly-scheduled hours. In the event EcoHealth Alliance requires employees to work

additional hours, all non-exempt employees will be paid one and one-half times their regular hourly rate of pay for all hours worked in excess of 40 hours in any workweek. Time paid but not worked, such as holidays, sick days, vacation time, and early closings will not be considered hours worked in a given week for the purpose of computing overtime pay. Non-exempt employees may not work overtime unless they receive prior written authorization from their supervisor.

15.3 Standard Working Hours

EcoHealth Alliance's regular business hours are Monday through Friday from 9:00 am to 5:00 pm. From Memorial Day to Labor Day, EcoHealth Alliance's business hours are Monday through Thursday, from 8:30 a.m. to 5:30 p.m, and Fridays from 8:30 a.m. to 1:00 p.m. The standard workweek for non-exempt employees is 35 hours. Exempt employees are expected to perform their duties fully and generally to be available at EcoHealth Alliance to perform them during EcoHealth Alliance's usual hours of business. Employees are permitted to take a 60-minute lunch break and two 10-minute rest breaks, one in the morning and one in the afternoon. Employees should consult with their supervisors to ensure that these breaks do not disrupt business operations.

Punctuality and regular attendance are essential functions of every employee's job at EcoHealth Alliance. Tardiness and unreported or unexcused absences will not be tolerated and may result in disciplinary action, up to and including termination of employment.

15.4 Flexible Scheduling and Telecommuting

At its discretion, EcoHealth Alliance may provide flexible work schedules or telecommuting for positions that are adaptable to such changes. Non-exempt employees may be able to arrange a schedule with management with flexible start and end times or may arrange for working out of their home offices, provided that such flexible schedules do not disrupt EcoHealth Alliance's operations and that there is adequate staffing at all times. Arrangements for all flexible work or telecommuting schedules must be approved by the President or designee.

Any telecommuting employee must make arrangements with his or her supervisor regarding the use of EcoHealth Alliance-owned equipment at home. The use of such equipment may not impede EcoHealth Alliance's access and ownership to such equipment. The employee will be responsible for the costs of installation of necessary electronic communications hardware and set up. Telecommuting employees are not responsible for purchasing supplies (paper, print cartridges, etc.) necessary for work performed at home. Stocking these supplies must be coordinated closely with the supervisor and office services administrator.

EcoHealth Alliance is not responsible for insuring the telecommuter's equipment in his or her home. EcoHealth Alliance is not liable for equipment for telecommuter's equipment in the eventuality that it breaks while performing work for EcoHealth Alliance.

15.5 Compensatory Time for Exempt Employees

Exempt employees may be eligible for compensatory time off when EcoHealth Alliance's President requires them to work more than 40 hours in a week on approved, planned projects or special assignments. The grant and amount of compensatory time requires written approval of the employee's supervisor. Compensatory time is granted on a one-hour for one-hour basis. All compensatory time used must be recorded on the payroll time sheets. Employees must use compensatory time within 1 month after such time is granted. If not used within 1 month, the time will be forfeited. Employees are not permitted to use more than 2 days of compensatory time in a row. Unused compensatory time will be forfeited upon termination of employment.

15.6 Record of Time Worked

All non-exempt employees are required to record time worked for payroll purposes. Such employees must record their own time at the start and end of each work period.

Exempt employees are required to record and report time worked on a monthly report reflecting the distribution of their activity by project and/or funding source. Time reports must reflect an after-the-fact determination of the actual activity of each employee. Budget estimates (i.e., estimates determined before the services are performed) do not qualify as support for charges to awards. Each report must account for the total activity for which employees are compensated and which is required in fulfillment of their obligations to EcoHealth Alliance. The reports must be signed by the individual employee, or by a responsible supervisory official having first-hand knowledge of the activities performed by the employee, that the distribution of activity represents a reasonable estimate of the actual work performed by the employee during the periods covered by the reports.

All employees must report full days of absence from work due to vacation, sick leave, personal business, or other reasons. Both the employee and their supervisor should approve monthly reports. Falsification of time records is prohibited and may result in disciplinary action, up to and including termination of employment.

15.7 Paychecks

Paychecks are distributed semi-monthly on the 15th and last day of each month. Should payday fall on a weekend or holiday, disbursements will be made on the last previous business day. Employees may choose to be paid by direct deposit into their bank account by completing a written authorization form, which may be obtained from the Office Manager.

16 Paid Time Off

16.1 Holidays

EcoHealth Alliance observes certain annual holidays. Holiday observances will be announced at the beginning of the fiscal year. When a holiday will be on a Saturday or Sunday, it shall usually be observed on the preceding Friday or following Monday.

Regular full-time non-exempt employees are eligible for holiday pay, which shall be calculated

based on the employee's regular hourly rate of pay multiplied by the employee's regularly scheduled hours worked. To be eligible for holiday pay, such employees must be regularly scheduled to work on the day on which the holiday falls.

Regular full-time non-exempt employees who are required to work on a holiday will receive their regular rate of pay for hours worked. Holiday hours, which are paid but not worked, are not counted for purposes of calculating an employee's overtime pay. Holiday hours which are worked will be counted for purposes of computing overtime pay. Part-time employees are eligible for pro-rated holiday pay when a holiday is on a regularly scheduled workday.

16.2 Vacation

Regular full-time and part-time employees are eligible for paid vacation time. The amount of vacation an employee receives is determined by length of service. Vacation pay is based upon an employee's regular weekly wage, excluding overtime.

Employees with 1 to 3 years of continuous service will accrue an annual maximum of 15 vacation days. Employees with 4 or more years of continuous service will accrue an annual maximum of 20 vacation days.

Regular part-time employees accrue a pro-rated amount of vacation based on hours regularly worked. Vacation time is subject to a 30 day waiting period for all new hires. Vacation time will accrue during the first 30 days of employment, but may not be used during this time, unless the employee receives prior written approval from their supervisor.

Employees should request vacation time as far in advance as possible and vacation time must be approved by an employee's supervisor. EcoHealth Alliance reserves the right to reject requests for vacation time without adequate notice or if the requested vacation would negatively impact EcoHealth Alliance's operations. Employees may not schedule vacations longer than 2 consecutive weeks without prior written approval from their supervisor. The smallest increment of vacation time that may be used is half of a day. Employees are encouraged to take all of their allowed vacation time every year. At the end of the fiscal year, employees will forfeit any accrued and unused vacation time.

If a holiday occurs during an employee's vacation period, they will not expend an accrued vacation day for the paid holiday days.

Employees on leaves of absence or other periods of inactive service do not accrue vacation time. Upon termination of the employment relationship, employees will be paid for any accrued and unused vacation time earned that year.

16.3 Sick Leave

EcoHealth Alliance offers regular full-time employees up to 12 days of paid sick leave each year. Employees may use sick leave for themselves or to care for sick family members. Sick

leave is accrued at the rate of one day per month of service up to a total of 12 days per year. Unused sick time will be forfeited upon termination of employment.

Regular part-time employees accrue sick leave on a pro-rated basis based on hours regularly worked.

If an employee is absent 5 or more consecutive days due to illness, EcoHealth Alliance may require the employee to obtain a report from a doctor certifying the employee's ability to return to work.

Whenever possible, employees who are absent from work due to illness should report their absence to their supervisor prior to the start of the workday. Employees who fail to report to work for 3 consecutive days without notifying a supervisor will be considered to have abandoned their job and voluntarily resigned their employment with EcoHealth Alliance.

16.4 Floating Personal Days

EcoHealth Alliance offers regular full-time and part-time employees up to 2 floating personal days each year. Floating personal days provide employees with a means of observing predictable days of personal significance, such as religious holidays, weddings, or other occasions. Full-time employees are eligible for 1 floating personal day for each 6 month period worked during the calendar year. New employees are eligible for 1 floating personal day in the year if their hire date is prior to July 1.

Part-time employees are eligible for floating personal days on a pro-rated basis, based on hours regularly worked, provided they have worked for at least 500 hours in the prior 6 months.

Floating personal days must be used in the bi-annual periods in which they are granted: July through December and January through June. Floating personal days may not be carried over from one bi-annual period to the next. Unused floating personal days will not be paid upon termination of employment. Employees should inform their supervisor of their intent to use a floating personal day at least one week in advance. Supervisors retain discretion to reject an employee's request for any legitimate reason.

17 Paid and Unpaid Leave Policies

17.1 Family and Medical Leave

EcoHealth Alliance will provide Family and Medical Leave (FMLA) to its eligible employees. The company posts the mandatory FMLA Notice and upon hire provides all new employees with notices required by the U.S. Department of Labor (DOL) on Employee Rights and Responsibilities under the Family and Medical Leave Act in New York State. In the event of any conflict between this policy and the applicable law, employees will be afforded all rights required by law. All questions, concerns, or disputes with this policy, must be addressed in writing to the Human Resources Officer. Under this policy, EcoHealth Alliance will grant up to

12 weeks (or up to 26 weeks of military caregiver leave to care for a covered service member with a serious injury or illness) during a 12-month period to eligible employees. The leave may be paid, unpaid, or a combination of paid and unpaid leave, depending on the circumstances of the leave.

17.1.1 Eligibility

To qualify to take family or medical leave under this policy, the employee must meet all of the following conditions:

1) The employee must have worked for EcoHealth Alliance for 12 months or 52 weeks. The 12 months or 52 weeks need not have been consecutive. Separate periods of employment will be counted, provided that the break in service does not exceed seven years. Separate periods of employment will be counted if the break in service exceeds seven years due to National Guard or Reserve military service obligations or when there is a written agreement, including a collective bargaining agreement, stating the employer's intention to rehire the employee after the service break. For eligibility purposes, an employee will be considered to have been employed for an entire week even if the employee was on the payroll for only part of a week or if the employee is on leave during the week.

2) The employee must have worked at least 1,250 hours during the 12-month period immediately preceding the commencement of the leave. The 1,250 hours do not include time spent on paid or unpaid leave. Consequently, these hours of leave should not be counted in determining the 1,250 hours eligibility test for an employee under FMLA.

3) The employee must work in a worksite where 50 or more employees are employed by the company within 75 miles of that office or worksite. The distance is to be calculated by using available transportation by the most direct route.

17.1.2 Type of Leave Covered

To qualify as FMLA leave, the employee must be taking leave for one of the reasons listed below:

1) The birth of a child and in order to care for that child.
2) The placement of a child for adoption or foster care and to care for the newly placed child.
3) Care for a spouse, child, or parent with a serious health condition.
4) A serious health condition of the employee.

An employee may take leave because of a serious health condition that makes them unable to perform the functions of the position. A serious health condition is defined as a condition that requires inpatient care at a hospital, hospice, or residential medical care facility, including any period of incapacity or any subsequent treatment in connection with such inpatient care or a condition that requires continuing care by a licensed health care provider.

EcoHealth Alliance's FMLA leave covers illnesses of a serious and long-term nature that may result in recurring or lengthy absences. Generally, a chronic or long-term health condition that would result in a period of three consecutive days of incapacity with the first visit to the health care provider within seven days of the onset of the incapacity and a second visit within 30 days of the incapacity would be considered a serious health condition. For chronic conditions requiring periodic health care visits for treatment, such visits must take place at least twice a year.

Employees with questions about what illnesses are covered under this FMLA policy or under the company's sick leave policy are encouraged to consult with the Human Resource Officer. If an employee takes paid sick leave for a condition that progresses into a serious health condition and the employee requests unpaid leave as provided under this policy, the company may designate all or some portion of related leave taken as leave under this policy, to the extent that the earlier leave meets the necessary qualifications.

5) Qualifying exigency leave for families of members of the National Guard or Reserves or of a regular component of the Armed Forces when the covered military member is on covered active duty or called to covered active duty.

An employee whose spouse, son, daughter or parent either has been notified of an impending call or order to covered active military duty or who is already on covered active duty may take up to 12 weeks of leave for reasons related to or affected by the family member's call-up or service. The qualifying exigency must be one of the following:

a. short-notice deployment
b. military events and activities
c. child care and school activities
d. financial and legal arrangements
e. counseling
f. rest and recuperation
g. post-deployment activities, and
h. additional activities that arise out of active duty, provided that the employer and employee agree, including agreement on timing and duration of the leave.

Eligible employees are entitled to FMLA leave to care for a current member of the Armed Forces, including a member of the National Guard or Reserves, or a member of the Armed Forces, the National Guard or Reserves who is on the temporary disability retired list, who has a serious injury or illness incurred in the line of duty on active duty for which he or she is undergoing medical treatment, recuperation, or therapy; or otherwise in outpatient status; or otherwise on the temporary disability retired list. Eligible employees may not take leave under this provision to care for former members of the Armed Forces, former members of the National Guard and Reserves, and members on the permanent disability retired list.

In order to care for a covered service member, an eligible employee must be the spouse, child, parent, or next of kin of a covered service member.

a) A child of a covered service member is the covered service member's biological, adopted, or foster child, stepchild, legal ward, or a child for whom the covered service member stood in loco parentis, and who is of any age.
b) A parent of a covered service member is a covered service member's biological, adoptive, step or foster father or mother, or any other individual who stood in loco parentis to the covered service member. This term does not include parents-in-law.
c) A spouse is the husband or wife of the covered service member. This definition includes those in same-sex marriages.
d) The covered service member's next of kin is the nearest blood relative, other than the covered service member's spouse, parent, or child in the following order of priority: blood relatives who have been granted legal custody of the service member by court decree or statutory provisions, brothers and sisters, grandparents, aunts and uncles, and first cousins, unless the covered service member has specifically designated in writing another blood relative as their nearest blood relative for purposes of military caregiver leave under the FMLA. When no such designation is made, and there are multiple family members with the same level of relationship to the covered service member, all such family members shall be considered the covered service member's next of kin and may take FMLA leave to provide care to the covered service member, either consecutively or simultaneously. When such designation has been made, the designated individual shall be deemed to be the covered service member's only next of kin. For example, if a covered service member has three siblings and has not designated a blood relative to provide care, all three siblings would be considered the covered service member's next of kin. Alternatively, where a covered service member has a sibling(s) and designates a cousin as their next of kin for FMLA purposes, then only the designated cousin is eligible as the covered service member's next of kin. EcoHealth Alliance is permitted to require an employee to provide confirmation of covered family relationship to the covered service member.

Covered active duty for members of a regular component of the Armed Forces means duty during deployment of the member with the Armed Forces to a foreign country. Covered active duty or call to covered active duty status in the case of a member of the Reserve components of the Armed Forces means duty during the deployment of the member with the Armed Forces to a foreign country under a Federal call or order to active duty in support of a contingency operation.

FMLA leave may commence as soon as the employee receives the call-up notice. This type of leave would be counted toward the employee's 12-week maximum of FMLA leave in a 12-month period.

6) Military caregiver leave also known as covered service member leave to care for an injured

or ill service member or veteran.

An employee whose son, daughter, parent or next of kin is a covered service member may take up to 26 weeks in a single 12-month period to take care of leave to care for that service member. Next of kin is defined as the closest blood relative of the injured or recovering service member. The term "covered service member" means (a) a member of the Armed Forces including a member of the National Guard or Reserves who is undergoing medical treatment, recuperation, or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list, for a serious injury or illness; or (b) a veteran who is undergoing medical treatment, recuperation, or therapy, for a serious injury or illness and who was a member of the Armed Forces including a member of the National Guard or Reserves at any time during the period of 5 years preceding the date on which the veteran undergoes that medical treatment, recuperation, or therapy.

"Serious injury or illness" (a) in the case of a member of the Armed Forces including a member of the National Guard or Reserves, means an injury or illness that was incurred by the member in line of duty on active duty in the Armed Forces or existed before the beginning of the member's active duty and was aggravated by service in line of duty on active duty in the Armed Forces and that may render the member medically unfit to perform the duties of the member's office, grade, rank, or rating; and (b) in the case of a veteran who was a member of the Armed Forces including a member of the National Guard or Reserves at any time during a period when the person was a covered service member, means a qualifying injury or illness incurred by a covered service member in the line of duty on active duty that may render the service member medically unfit to perform the duties of his or her office, grade, rank or rating.

"Outpatient status", with respect to a covered service member, means the status of a member of the Armed Forces assigned to either a military medical treatment facility as an outpatient; or a unit established for the purpose of providing command and control of members of the Armed Forces receiving medical care as outpatients.

17.1.3 Amount of Leave

An eligible employee can take up to 12 weeks for the FMLA circumstances (1) through (5) above under this policy during any 12-month period. The company will measure the 12-month period as a rolling 12-month period measured backward from the date an employee uses any leave under this policy. Each time an employee takes leave, the company will compute the amount of leave the employee has taken under this policy in the last 12 months and subtract it from the 12 weeks of available leave, and the balance remaining is the amount the employee is entitled to take at that time.

An eligible employee can take up to 26 weeks for the FMLA circumstance (6) above (military caregiver leave) during a single 12-month period. For this military caregiver leave, the company will measure the 12-month period as a rolling 12-month period measured forward. FMLA leave already taken for other FMLA circumstances will be deducted from the total of 26 weeks

available.

If spouses work for EcoHealth Alliance and each wish to take leave for the birth of a child, adoption or placement of a child in foster care, or to care for a parent with a serious health condition, the spouses may only take a combined total of 12 weeks of leave. If spouses work for EcoHealth Alliance and each wish to take leave to care for a covered injured or ill service member, the spouses may only take a combined total of 26 weeks of leave.

17.1.4 Employee Status and Benefits During Leave

While an employee is on leave, the company will continue the employee's health benefits during the leave period at the same level and under the same conditions as if the employee had continued to work. If the employee chooses not to return to work for reasons other than a continued serious health condition of the employee or the employee's family member or a circumstance beyond the employee's control, the company will require the employee to reimburse the company the amount it paid for the employee's health insurance premium during the leave period.

Under current company policy, the employee pays a portion of the health care premium. While on paid leave, the employer will continue to make payroll deductions to collect the employee's share of the premium. While on unpaid leave, the employee must continue to make this payment, either in person or by mail. The payment must be received in the Finance department by the same, agreed upon day of each month. If the payment is more than 30 days late, the employee's health care coverage may be dropped for the duration of the leave. EcoHealth Alliance will provide 15 days' notification prior to the employee's loss of coverage.

If the employee contributes to a life insurance or disability plan, EcoHealth Alliance will continue making payroll deductions while the employee is on paid leave. While the employee is on unpaid leave, the employee may request continuation of such benefits and pay their portion of the premiums, or the employer may elect to maintain such benefits during the leave and pay the employee's share of the premium payments. If the employee does not continue these payments, the employer may discontinue coverage during the leave. If the employer maintains coverage, the employer may recover the costs incurred for paying the employee's share of any premiums, whether or not the employee returns to work.

17.1.5 Employee Status After Leave

An employee who takes leave under this policy may be asked to provide a fitness for duty clearance from the health care provider. This requirement will be included in the employer’s response to the FMLA request. Generally, an employee who takes FMLA leave will be able to return to the same position or a position with equivalent status, pay, benefits, and other employment terms. The position will be the same or one which is virtually identical in terms of pay, benefits, and working conditions. The company may choose to exempt certain key employees from this requirement and not return them to the same or similar position.

17.1.6 Use of Paid and Unpaid Leave

An employee who is taking FMLA leave because of their own serious health condition or the serious health condition of a family member must use all paid vacation, personal or sick leave prior to being eligible for unpaid leave. Sick leave may be run concurrently with FMLA leave if the reason for the FMLA leave is covered by the established sick leave policy. Disability leave for the birth of the child and for an employee's serious health condition, including workers' compensation leave, to the extent that it may qualify, will be designated as FMLA leave and will run concurrently with FMLA. For example, if an employer provides six weeks of pregnancy disability leave, the six weeks will be designated as FMLA leave and counted toward the employee's 12-week entitlement. The employee may then be required to substitute accrued or earned paid leave as appropriate before being eligible for unpaid leave for what remains of the 12-week entitlement.

An employee who is taking leave for the adoption or foster care of a child must use all paid vacation, personal, or family leave prior to being eligible for unpaid leave.
An employee who is using military FMLA leave for a qualifying exigency must use all paid vacation and personal leave prior to being eligible for unpaid leave. An employee using FMLA military caregiver leave must also use all paid vacation, personal leave, or sick leave as long as the reason for the absence is covered by the company's sick leave policy prior to being eligible for unpaid leave.

17.1.7 Intermittent Leave or a Reduced Work Schedule

The employee may take FMLA leave in 12 consecutive weeks, may use the leave intermittently (take a day periodically when needed over the year) or, under certain circumstances, may use the leave to reduce the workweek or workday, resulting in a reduced hour schedule. In all cases, the leave may not exceed a total of 12 workweeks or 26 workweeks to care for an injured or ill service member over a 12-month period. EcoHealth Alliance may temporarily transfer an employee to an available alternative position with equivalent pay and benefits if the alternative position would better accommodate the intermittent or reduced schedule, in instances of when leave for the employee or employee's family member is foreseeable and for planned medical treatment, including recovery from a serious health condition or to care for a child after birth, or placement for adoption or foster care. For the birth, adoption or foster care of a child, an employee must agree to a schedule with the full approval of their supervisor before they may take the leave intermittently or work a reduced hour schedule. Leave for birth, adoption, or foster care of a child must be taken within one year of the birth or placement of the child. If the employee is taking leave for a serious health condition or because of the serious health condition of a family member, the employee and their supervisor should try to reach agreement on scheduling before taking intermittent leave or working a reduced hour schedule. If this is not possible, then the employee must prove that the use of the leave is medically necessary.

17.1.8 Certification for the Employee's or Family Member's Serious Health Condition

EcoHealth Alliance will require certification for an employee's or a covered employee's family member's serious health condition. An employee must respond to such a request within 15 days or provide a reasonable explanation for any delay. Failure to provide certification may result in a denial of continuation of leave. Medical certification will be provided using the US Department of Labor Certification of Health Care Provider for Employee's Serious Health Condition form available upon request from the EcoHealth Alliance Human Resource Officer or Office Manager. The EcoHealth Alliance Human Resource Officer may directly contact the employee's health care provider for verification or clarification purposes. EcoHealth Alliance will not use the employee's direct supervisor for this contact. Before EcoHealth Alliance makes this direct contact with the health care provider, the employee will be given an opportunity to resolve any deficiencies in the medical certification. In compliance with HIPAA Medical Privacy Rules, EcoHealth Alliance will obtain the employee's permission for clarification of individually identifiable health information.

EcoHealth Alliance has the right to ask for a second opinion, if there is reason to doubt the certification. EcoHealth Alliance will pay for the employee to get a certification from a second doctor, who will be selected by EcoHealth Alliance. FMLA leave may be denied to an employee who refuses to release relevant medical records to the health care provider designated by EcoHealth Alliance to provide a second or third opinion. If necessary to resolve a conflict between the original certification and the second opinion, EcoHealth Alliance may require the opinion of a third doctor. EcoHealth Alliance and the employee may mutually select a third doctor who will be paid for by EcoHealth Alliance. This third opinion will be considered final. The employee will be provisionally entitled to leave and benefits under the FMLA pending the findings of the second or third opinion as necessary.

17.1.9 Certification of Qualifying Exigency for Military Family Leave

EcoHealth Alliance will require certification of the qualifying exigency for military family leave. The employee must respond to such a request within 15 days of the request or provide a reasonable explanation for the delay. Failure to provide certification may result in a denial of continuation of leave. This certification will be provided using the US Department of Labor's Certification of Qualifying Exigency for Military Family Leave form available upon request from the EcoHealth Alliance Human Resource Officer or Office Manager.

17.2 Certification for Serious Injury or Illness of Covered Service member for Military Family Leave

EcoHealth Alliance will require certification for the serious injury or illness of the covered service member. The employee must respond to such a request within 15 days of the request or provide a reasonable explanation for the delay. Failure to provide certification may result in a denial of continuation of leave. This certification will be provided using the US Department of Labor's Certification for Serious Injury or Illness of Covered Service Member form available upon request from the EcoHealth Alliance Human Resource Officer or Office Manager

17.2.1 Recertification

EcoHealth Alliance may request recertification for the serious health condition of the employee or the employee's family member no more frequently than every 30 days unless circumstances have changed significantly, or if the employer receives information casting doubt on the reason given for the absence, or if the employee seeks an extension of his or her leave. Otherwise, the company may request recertification for the serious health condition of the employee or the employee's family member every six months in connection with an FMLA absence. The company may provide the employee's health care provider with the employee's attendance records and ask whether the need for leave is consistent with the employee's serious health condition.

17.2.2 Procedure for Requesting FMLA Leave

All EcoHealth Alliance employees requesting FMLA leave must provide verbal or written notice of the need for the leave to their supervisor. Within five business days after the employee has provided this notice, the Human Resources Officer will complete and provide the employee with the US Department of Labor Notice of Eligibility and Rights. When the need for the leave is foreseeable, the employee must provide the employer with a notification of at least 30 days. When an employee becomes aware of a need for FMLA leave less than 30 days in advance, the employee must provide notice of the need for the leave either the same day or the next business day. When the need for FMLA leave is not foreseeable, the employee must comply with EcoHealth Alliance's usual and customary notice and procedural requirements for requesting leave, absent unusual circumstances.

17.2.3 Designation of FMLA Leave

Within five business days after the employee has submitted the appropriate certification form, the Human Resources Officer will complete and provide the employee with a written response to the employee's request for FMLA leave using the US Department of Labor Designation Notice.

17.2.4 Intent to Return to Work From FMLA Leave

On a basis that does not discriminate against employees on FMLA leave, EcoHealth Alliance may require an employee on FMLA leave to report periodically on the theirand intent to return to work.

17.3 Parental Leave

EcoHealth Alliance supports new parents' in their bonding with their new child while balancing work and family matters. The intent of this policy is to supplement the benefits currently available to all EcoHealth Alliance employees as well as those required under the Federal Family and Medical Leave Act ("FLMA") and current State Paid Family Leave policies.

The EcoHealth Alliance Paid Parental Leave Policy provides eligible employees with a period

of paid time off for activities related to the care and well-being of their newborn or adopted child

For employees eligible for state managed Paid Family Leave programs, Ecohealth Alliance will provide up to the employees regular salary, less amounts paid by PFL programs. Benefits will be verified from state agencies and from Employee inquiries. Should state PFL allow for non-concurrent leave, EcoHealth Alliance will follow the time restrictions provided by the state policy.

For employees not eligible for state managed Paid Family Leave (PFL) programs, EcoHealth Alliance will provide 100% paid parental leave to eligible employees immediately following the birth or the coming of the child into the custody, care, and control of the parent for the first time, up to twelve (12) weeks. If both eligible parents are EHA employees, both may access these benefits respectively.

The amount of the benefit will be based on salary at the time immediately prior to taking leave. Payment for Parental Leave will be on regular payroll dates.

An employee taking the EcoHealth Alliance Parental Leave will continue to be covered by the health insurance plan and will accrue all vacation and sick leave days in accordance with existing policies. Upon returning to active employment, health insurance reimbursement or EcoHealth Alliance pension contributions will resume.

All full-time employees are eligible to participate in the Parental Leave program. Individual state eligibility requirements vary and may change over time. For NYS PFL, Employees living or working in NY State are eligible for leave after 26 weeks of employment working 20 hours or more each week.

To apply for paid Parental Leave, complete an application form available from HR and request any additional state or private disability forms. Discuss anticipated leave dates and job task coverage during leave with supervisor and communicate to HR and Chief of Staff.

To ensure accurate and timely payment, the employee is responsible for submitting *all appropriate* signed forms to Human Resources *at least* thirty (30) days in advance of the first day of requested Parental Leave. If leave start date is unknown, please provide estimated dates.

Once the Parental Leave maximum period has passed, the employee may use any other accrued paid vacation time. After all accrued paid vacation time is exhausted, he or she may request up to 12 weeks of unpaid leave under FMLA.

An EcoHealth Alliance employee who does not return to work after this period shall be

deemed to have abandoned her or his position and will be terminated from employment.

17.4 Bereavement

Employees may, at the discretion of EcoHealth Alliance' s President, be given up to a maximum of 5 consecutive work days off with pay, up to and including the day of the funeral, in the event of death of a member of the employee's immediate family. Immediate family includes spouse, domestic partner, significant others, children, parents, in-laws, aunts or uncles, and grandparents.

EcoHealth Alliance's President will determine the length of bereavement leave given. Criteria for determining the amount of leave allowed includes a variety of factors including, but not limited to, the need for out-of-town travel and responsibility for handling funeral arrangements. In order to be paid for bereavement leave, an employee must notify their supervisor and request bereavement leave no later than the first day of absence. EcoHealth Alliance reserves the right to verify all absences.

17.5 Jury Duty

Employees who are selected for jury duty must submit the jury duty notice to their supervisor. If employees serving as jurors are excused from Court prior to the close of the business day, they are expected to report to work for the remainder of the business day. All employees will continue to be paid full salary while on jury duty. While serving on jury duty, employees are expected to call in to their supervisor periodically to keep them apprised of your status.

17.6 Voting and Military Leave

EcoHealth Alliance will provide voting and military leave in accordance with the requirements of federal and state law. Employees must provide as much notice as possible prior to taking either leave.

18 Professional Development and Tuition Reimbursement

EcoHealth Alliance offers regular full-time employees the opportunity to participate in its professional development program. Under this program, eligible employees may enroll in courses, workshops, and conferences that are related to their job and may receive reimbursement from EcoHealth Alliance for related costs. The rate of reimbursement shall be determined by EcoHealth Alliance at the time of approval. EcoHealth Alliance reserves the right to decline any request for reimbursement for professional development.

Employees receiving organization sponsored tuition reimbursement are responsible for all federal, state, and local taxes that may apply to use of this benefit.

Please see the EcoHealth Alliance Policy for Compensation and Incentives for more information on professional development and tuition reimbursement.

19 Performance Management

EcoHealth Alliance's goal is to provide regular feedback to employees against performance expectations. Performance evaluations are a professional feedback tool designed to help employees develop and hone their professional skills. EcoHealth Alliance strives to complete formal performance evaluation on a fiscal year basis, but reserves the right to alter the performance evaluation process at any time. Formal performance evaluations typically will include a review of the quantity and quality of the work performed, as well as an employee's initiative, attitude, responsiveness, and ability to work successfully with colleagues. Depending upon an employee's job description or duties, a performance evaluation also may include a review of other relevant factors. Reviewers are asked to comment and rate the employee's professional skills and team impact.

Positive performance evaluations do not guarantee increases in salary or payment of bonuses or any other type of discretionary compensation. Promotions, salary increases, and discretionary payments of any kind are solely within the discretion of management and depend upon many factors in addition to individual performance. EcoHealth Alliance employees are also afforded the opportunity to provide feedback about their supervisor's and colleagues' performance. This combined perspective helps to create balance among the different reviews and to create a clear picture for the employee about their behavior, impact, and skills. The goal is to provide each employee with feedback that will help them improve and focus their long-term development.

For more information on performance evaluations, please see the EcoHealth Alliance Policy for Compensation and Incentives.

20 Employee Conduct

EcoHealth Alliance employees should behave in a manner that is conducive to the efficient operation of EcoHealth Alliance and that meets EcoHealth Alliance standards of behavior. Maintaining proper standards of conduct is necessary, among other things, to provide efficient service, to protect safety and health, and to protect EcoHealth Alliance's goodwill and property. Employees are expected to abide by all published and unpublished rules, regulations, policies, procedures and instructions of EcoHealth Alliance. All employees engaging in unacceptable conduct may be subject to discipline, up to and including termination of employment. To ensure a successful and efficient operation and the best possible work environment for employees, EcoHealth Alliance expects employees to follow rules of conduct that protect the interests and safety of all employees and EcoHealth Alliance. All employees must know, understand, and adhere to the following standards of conduct:

20.1 General Conduct

Employees are expected to conduct themselves at all times in a professional and business-like manner. Employees are expected to be courteous at all times to guests, co-workers, supervisors, and third parties. Employees are also expected to conform to all rules of the job-sites at which

they are working.

20.2 Attitude

Employees are expected to show a professional attitude at all times by being friendly, communicating fully and honestly with others, and treating everyone with whom they interact with dignity and respect. Abusive language, creating any type of disturbance, a lack of cooperation, or insubordination shows a lack of respect and will not be tolerated. Discourtesy to co-workers, visitors, guests, management, or third parties is against EcoHealth Alliance policy, and will result in disciplinary action, up to and including termination of employment.

20.3 Performance

Employees are expected to carry out their job duties and responsibilities to the best of their abilities. Unsatisfactory job performance or negligence can lead to disciplinary action, up to and including termination of employment.

20.4 Professional Dress and Appearance

It is the policy of EcoHealth Alliance that each employee's dress and grooming should be appropriate to the work situation and be consistent with EcoHealth Alliance's professional business standards and environment.

21 Corrective Action

It is important that all employees perform to the best of their abilities at all times. There will be occasions, however, where employees perform at an unsatisfactory level, violate a policy, or commit an act that is inappropriate. As previously described, employment with EcoHealth Alliance may be terminated at will at any time, for any reason, with or without notice and without following any formal system of discipline and warnings. Nevertheless, EcoHealth Alliance may choose to exercise its discretion to use forms of discipline that are less severe than termination in certain cases depending on the nature and severity of the misconduct. Examples of such less severe forms of discipline include verbal warnings, written warnings, and suspension. Discipline may involve one or more of these less severe forms of discipline. Although one or more of these steps may be taken in connection with a particular employee, no formal order or system of discipline is required. EcoHealth Alliance may terminate the employment relationship at any time, without following any particular series of steps whenever it determines, in its sole and exclusive discretion, that such action is warranted.

22 Discipline

In the event of a violation of EcoHealth Alliance rules or policies that requires disciplinary action, EcoHealth Alliance may, in its sole discretion, address the violation by implementing one or more of the following steps, depending on the frequency, seriousness, and circumstances of the offense:

- Verbal warning with written documentation
- Written warning

- Second written warning with possible unpaid suspension for three or more days
- Termination of employment

EcoHealth Alliance is not required to give any particular level of discipline in any situation. This policy in no way limits the at-will status of EcoHealth Alliance employees. The following are examples of infractions of rules or conduct that are considered unacceptable in the workplace and could result in disciplinary action, up to and including immediate termination of employment.

- Failure or refusal to follow directions or perform assigned duties
- Repeated unexcused absences or tardiness
- Unauthorized use of EcoHealth Alliance equipment or property
- Failure to appear professional in dress and appearance
- Discussing confidential EcoHealth Alliance information
- Smoking in prohibited areas
- Theft or inappropriate removal or possession of property
- Possession, distribution, sale, transfer, or use of alcohol or illegal drugs in the workplace while on duty
- Sexually harassing, fighting, or threatening another employee, customer, contractor, associate, or individual
- Falsification and fraudulent statements on employment applications or records
- Possessing dangerous or deadly weapons on EcoHealth Alliance premises or possessing dangerous or deadly weapons while representing EcoHealth Alliance

23 Research Misconduct

EcoHealth Alliance is committed to ensuring to the public that all its research be conducted with the highest standards of integrity and ethical behavior. It is EcoHealth Alliance's policy to inform fully all affected parties where misconduct has occurred in research under supervision of EcoHealth Alliance. All EcoHealth Alliance personnel have a personal responsibility for implementing the following policy in relation to any research with which they are associated and for aiding all collaborators in continuing efforts to avoid any activity that might be considered in violation with this policy.

Please see the EcoHealth Alliance Research Misconduct Policy for required standards for research integrity and procedures for the reporting and investigation of research misconduct, including reporting to funders.

24 Administrative Procedures

24.1 Office Phone Usage

Employees are expected to utilize office phones for business purposes. Personal phone calls should be kept to a minimum.

24.2 Personnel Files and Personal Information

The Human Resources Officer maintains a personnel file for each employee. Personnel files are kept confidential by EcoHealth Alliance with access only provided on an as necessary basis. Personnel files contain hiring, personal, and job-performance information. Upon request, employees are entitled to read the contents of their personnel files at any time.

24.3 Reporting Change in Status or Emergency Information

Employee records must be kept up to date in case EcoHealth Alliance must notify an employee or the employee's designated emergency contact of an emergency situation. If changes occur regarding an employee's name, residence, address, telephone, emergency contact, and other information, employees should immediately complete a Change of Personal Information Form, which should be requested from the Office Manager or the Human Resources Officer.

24.4 Release of Personal Information and References

All inquiries about personnel must be directed to the Human Resources Department. A Human Resources Representative generally will only verify by phone or email the dates of employment and job titles of current and former employees.

25 Leaving EcoHealth Alliance

Termination means that an employee separates from EcoHealth Alliance and will be removed from the payroll. The effective date of termination is the last day worked. Any wages owed through the termination date, including any accrued, unused, approved vacation time shall be paid to the employee by the next regular payday.

Following termination, an ex-employee should be certain that EcoHealth Alliance is updated with their current address in order to ensure timely arrival of the W-2 form and any other paperwork.

25.1 Voluntary Termination

EcoHealth Alliance will consider an employee to have voluntarily terminated they employment if an employee does any of the following: (a) elects to resign from EcoHealth Alliance; (b) is absent from work for 3 consecutive days without giving proper notice to EcoHealth Alliance regarding they absence; or (c) does not return to work after a EcoHealth Alliance-approved leave of absence. Employees who voluntarily terminate their employment with EcoHealth Alliance will receive their final wages on the regularly scheduled payday following their separation from EcoHealth Alliance.

A minimum of 2 weeks notice of resignation is requested, but not required. Resignation must be submitted to a supervisor in writing and include reasons for resignation and final planned day of employment. Payment will be made for all time worked as well as all accrued, unused, and approved vacation days.

25.2 Involuntary Termination

Should EcoHealth Alliance decide to terminate an employee, the separation is involuntary. Employees who are separated involuntarily will be paid for the time worked and all accrued, unused, and approved vacation days. Involuntarily separated employees will receive their final wages by the regularly scheduled payday following their separation from EcoHealth Alliance.

25.3 Death of an Employee

A termination due to the death of an employee will be made effective as of the date of death. Upon receiving notification of the death of an employee, the employee's manager should immediately notify the benefits administrator. The benefits administrator will process all appropriate beneficiary payments from the employee's benefit plans.

25.4 Return of EcoHealth Alliance Property

Upon an employee's termination of employment at EcoHealth Alliance, all property in the employee's possession or control, including documents and electronic material must be returned to EcoHealth Alliance. Employees must remove all personal belongings from EcoHealth Alliance by the final day of employment.

25.5 Exit Interviews

An employee who leaves EcoHealth Alliance for any reason may request an exit interview with the employee's immediate supervisor or if the employee prefers, the Human Resources Officer. At that time, EcoHealth Alliance property must be returned. Benefits and pay matters will also be discussed, including medical and dental insurance continuation, vacation accrual status, and pension plan account information. Employees are expected to turn over their projects and work areas to their supervisor or colleagues in a way that the work may be easily reviewed, retrieved, and resumed as appropriate.

25.6 Continuation of Medical Benefits

If an employee resigns or is terminated (except for gross misconduct) or an event occurs that deems an employee no longer eligible for health insurance benefits, the employee and eligible dependents may have the right to continue health insurance benefits for a period of time under applicable state or federal law, usually for up to eighteen (18) months, although this may be longer depending upon the situation. The insured will be required to pay the full cost of monthly insurance premiums. Upon request the Human Resources Officer will provide additional details.

25.7 Severance

In the event a EcoHealth Alliance employee is laid off for non-performance-related reasons (e.g., due to a restructuring or loss of funding), the employee will receive up to two weeks of severance pay for each year of service, provided that the employee signs a Severance Agreement and Release drafted by and satisfactory to EcoHealth Alliance. The severance pay may be paid out as salary continuation in accordance with EcoHealth Alliance's normal payroll practices.

26 Cost Allowability, To Include Travel Expenses

EcoHealth Alliance operates as a tax exempt organization that is transparent in its financial operations and responsive to the trust placed in it by public and private supporters. EcoHealth Alliance is committed to its status as a responsible steward of federal funds and therefore has shaped its organizational policies to adhere to federal regulations, providing additional guidance to adapt to the more stringent requirements of any funder where applicable.

EcoHealth Alliance's standards and requirements for all personnel can be found in its policies for Travel and Cost Allowability.

27 RECEIPT AND ACKNOWLEDGEMENT

I understand that the information contained in the EcoHealth Alliance Employee Handbook may be changed at any time at the sole discretion of EcoHealth Alliance, with or without prior notice to me. I further understand that EcoHealth Alliance reserves the right to unilaterally modify, amend, or terminate policies, procedures and/or benefits at any time, with or without notice. I understand that I may consult the Human Resources Officer for clarification of the EcoHealth Alliance Handbook.

I understand that the Employee Handbook is not a contract, express or implied, between EcoHealth Alliance and me and should not be viewed as such. I acknowledge and understand that nothing in this Handbook, or any other EcoHealth Alliance rule, practice or procedure grants me employment by EcoHealth Alliance for a specified period of time. I understand and agree that my employment is at-will, which means that either EcoHealth Alliance or I may terminate my employment for any reason, at any time, with or without cause. I understand that any statement regarding the term of my employment may only be modified by written agreement signed by EcoHealth Alliance's President or designee.

My signature below indicates that I am aware of the Employee Handbook and understand that I am responsible for being aware of its contents.

Employee Signature: _____

Employee Printed Name: _____

Date: _____